

UNITED STATES DISTRICT COURT
DISTRICT OF MINNESOTA

Joseph Kirchner,

Case No. 26-CV-2594 (LMP/DJF)

Plaintiff,

vs.

Keith Ellison,

Defendant.

**DEFENDANT’S RESPONSE
MEMORANDUM IN OPPOSITION
TO PLAINTIFF’S MOTION TO
ALTER OR AMEND JUDGMENT**

INTRODUCTION

Plaintiff Joseph Kirchner has unsuccessfully brought two separate actions against Defendant Keith Ellison for declining to prosecute a matter Plaintiff referred to Defendant. (ECF 27.) *See also Kirchner v. Ellison*, No. 26-cv-726 (PJS/ECW) (“*Kirchner I*”). In *Kirchner I*, Plaintiff alleged in his amended complaint that he sent a criminal referral with the Minnesota Attorney General’s office, alleging “computer crimes, trade secret theft, AI child safety endangerment, and copyright violations by a Minnesota utility company.” (*Kirchner I*, ECF 26 at 8.) The amended complaint also alleged that the Minnesota Attorney General’s Office (“AGO”) responded to his referral by falsely disclaiming its authority investigate criminal matters. (*Id.*, *Kirchner I*, ECF 26-1.) United States District Judge Patrick J. Schiltz *sua sponte* dismissed Kirchner’s amended complaint for violating Rule 8 while also stating that the “case is an obvious abuse of the Court’s already strained resources” and Plaintiff “obviously lacks standing.” (*Kirchner I*, ECF 29 at 2-3.) The Court also warned Plaintiff that “should he file additional frivolous complaints or other

papers, he may be subject to sanctions, including a filing restriction.” (*Id.* at 3.) Plaintiff appealed and the Eighth Circuit summarily affirmed. *See Kirchner v. Ellison*, No. 26-1615, Order at 1 (8th Cir. June 25, 2026).

While Plaintiff’s appeal was pending, Plaintiff brought this present action, repeating his grievances against Defendant by alleging he referred a criminal matter to the AGO, the AGO declined to prosecute his referral by falsely disclaiming its authority, and the AGO’s website contains a false disclaimer about its prosecutorial authority. (ECF 1 at ¶¶ 4, 16-32.) Defendant moved to dismiss for preclusion, lack of subject-matter jurisdiction based on standing and immunity, and failure to state a claim. (ECF 11.) Plaintiff opposed Defendant’s motion, arguing in relevant part that “Plaintiff’s injury is the denial of his criminal referral through a false statement of law and the resulting foreclosure and chilling of his right to petition,” (ECF 15 at 15), and that the AGO’s website disclaimer “constitutes and ongoing misrepresentation of Minnesota law to every citizen who visits the [AGO’s] website,” (*Id.* at 22.).

This Court subsequently dismissed, noting that Plaintiff’s “complaint is riddled with pleading problems, but a few suffice to dismiss it.” (ECF 27 at 4.) This Court concluded that Plaintiff lacked standing because, even if the AGO had authority to prosecute his criminal referral, “a private citizen lacks a judicially cognizable interest in the prosecution or nonprosecution of another.” (*Id.* at 5 (quoting *Linda R.S. v. Richard D.*, 410 U.S. 614, 619 (1973))). This Court also concluded that the *Ex parte Young* exception to Eleventh Amendment immunity did not apply because Plaintiff “does not allege an ongoing violation of *federal* law” but rather “alleges an ongoing violation of *state* law.” (ECF 27

at 6.) The Court also explained, “To the extent that Kirchner argues that he has alleged ongoing violations of his First and Fourteenth Amendment rights, the Court disagrees, as any federal constitutional injury was complete at the time Kirchner received the letter from the Attorney General’s Office.” (*Id.* (record citations omitted).) The Court further explained that *Ex parte Young* is inapplicable because Plaintiff cannot show that “an enforcement action of a civil or criminal nature is ‘imminent’ against him. (ECF 27 at 7 (quoting *Morales v. Trans World Airlines, Inc.*, 504 U.S. 374, 381 (1992))).) Accordingly, the Court dismissed Plaintiff’s complaint and reiterated Chief Judge Schiltz’s admonishment to Plaintiff about bringing frivolous claims. (ECF 27 at 7-8.)

Plaintiff now moves to alter or amend the judgment. (ECF 29.) Plaintiff requests that this Court vacate its order granting Defendant’s motion to dismiss, arguing that this Court erred in concluding that Plaintiff lacks standing and that this case does not meet the *Ex parte Young* exception to Eleventh Amendment immunity. (ECF 29 at 2-3; ECF 30 at 3-11.) Alternatively, Plaintiff requests that this Court alter the judgment to clarify that the dismissal of his complaint is without prejudice and grant Plaintiff leave to amend his complaint. (ECF 29 at 3-4; ECF 30 at 11-13.) For the reasons discussed below, this Court should deny Plaintiff’s motion.

LEGAL STANDARD

“Rule 59(e) motions serve a limited function of correcting manifest errors of law or fact or to present newly discovered evidence.” *United States v. Metro. St. Louis Sewer Dist.*, 440 F.3d 930, 933 (8th Cir. 2006) (quotations omitted). “A manifest error is not demonstrated by the disappointment of the losing party. It is the wholesale disregard,

misapplication, or failure to recognize controlling precedent.” *Undlin v. City of Minneapolis*, No. CIV. 08-1855 (JNE/FLN), 2009 WL 3754208, at *3 (D. Minn. Nov. 4, 2009) (quoting *Oto v. Metro. Life Ins. Co.*, 224 F.3d 601, 606 (7th Cir. 2000)). “A district court has broad discretion in determining whether to grant or deny a motion to alter or amend judgment pursuant to Rule 59 (e).” *Metro. St. Louis Sewer Dist.*, 440 F.3d at 933.

“Such motions cannot be used to introduce new evidence, tender new legal theories, or raise arguments which could have been offered or raised prior to entry of judgment.” *Innovative Home Health Care, Inc. v. P.T.-O.T. Assocs. of the Black Hills*, 141 F.3d 1284, 1286 (8th Cir. 1998); *Dale & Selby Superette & Deli v. United States Dept. of Agriculture*, 838 F. Supp. 1346, 1348 (D. Minn. 1993) (stating that a Rule 59 motion “is not intended to routinely give litigants a second bite at the apple, but to afford an opportunity for relief in extraordinary circumstances”). And the Court need not consider previously reviewed arguments the Court found meritless in dismissing the case. *Rivera v. Sedgwick Claims Mgmt. Servs.*, No. 24-CV-3247 (LMP/SGE), 2025 WL 2680635, at *6 (D. Minn. Sept. 19, 2025).

ARGUMENT

I. THE COURT MADE NO MANIFEST ERROR OF LAW OR FACT REGARDING PLAINTIFF’S LACK OF STANDING.

Plaintiff first argues that the Court’s standing analysis is flawed because it relies on a misstatement of his alleged injury. (ECF 30 at 3.) Plaintiff’s statement is belied by his own memorandum in opposition of Defendant’s motion to dismiss: “Plaintiff’s injury is the denial of his criminal referral through a false statement of law and the resulting

foreclosure and chilling of his right to petition.” (ECF 15 at 15.) Plaintiff now attempts to recast his injury by stating that “a petition foreclosed by a false statement of the office’s authority is not a petition denied in the exercise of discretion.” (ECF 15 at 5.) This is a distinction without a difference, however, amounting to no more than arguments Plaintiff previously made or previously could have made in responding to Defendant’s motion to dismiss. This Court therefore need not consider them. *Innovative Home Health Care, Inc.*, 141 F.3d at 1286 (8th Cir. 1998); *Rivera*, 2025 WL 2680635, at *6. But even if the Court considers Plaintiff’s argument, that the AGO’s letter somehow deters him from further petitioning, Plaintiff ignores the fact that nothing in the letter prevents Plaintiff from resubmitting a petition and that the AGO could still reject the petition for any reason at all without it constituting an injury to Plaintiff. *See Parkhurst v. Tabor*, 569 F.3d 861, 866 (8th Cir. 2009) (explaining that “those who would urge the prosecution of others, even when the failure to prosecute was allegedly discriminatory,” lack standing to bring such claims).

Plaintiff’s next argument is that once the Court assumed the AGO had the authority to conduct the investigations and prosecutions he seeks, Plaintiff’s injury is established. (ECF 30 at 8-11, quoting ECF 27 at 5 (“But even if Kirchner is correct that the Minnesota Attorney General’s Office possesses the authority to conduct the investigations and prosecutions he seeks, Kirchner ‘lacks standing’”).) This argument fails for the same reason the previous argument failed. Plaintiff incorrectly assumes this Court must decide the AGO’s authority to prosecute certain claims because he has been “injured” by the statements he alleges are false. But Plaintiff cannot be injured by such a statement even if

false, because, as this court noted, Plaintiff “lacks standing to contest the policies of [a] prosecuting authority when he himself is neither prosecuted nor threatened with prosecution” because “a private citizen lacks a judicially cognizable interest in the prosecution or nonprosecution of another.” (ECF 27 at 5 (quoting *Linda*, 410 U.S. at 619).) The disposal of Plaintiff’s petition, no matter the reason, cannot support an injury sufficient to confer standing. *Parkhurst*, 569 F.3d at 866. This Court therefore made no manifest error of law or fact regarding Plaintiff’s lack of standing.

II. NO ONGOING VIOLATION OF FEDERAL LAW EXISTS.

Plaintiff next takes issue with the Court’s analysis under *Ex parte Young*, arguing that this Court ignored Plaintiff’s allegations that the statements on the AGO’s website constituted an ongoing violation. (ECF 30 at 6-7.) But nowhere in Plaintiff’s complaint or memorandum has Plaintiff explained how those statements are a violation of *federal law* and has rather affirmatively asserted that they are a violation of *state law*. (ECF 1 ¶¶ 23; ECF 15 at 22; ECF 30 at 6-7.) (*see also* ECF 11 at 11-14 (explaining why Plaintiff failed to adequately plead any constitutional violation).) The Court therefore correctly concluded that “*Ex parte Young* is ‘inapplicable in a suit against state officials on the basis of state law.’” (ECF 27 at 6 (quoting *Pennhurst State Sch. & Hosp. v. Halderman*, 465 U.S. 89, 106 (1984)).)

Plaintiff’s argument also ignores the Court’s statements that “*Ex parte Young* itself is ‘nothing more than the pre-emptive assertion in equity of a defense that would otherwise have been available in the State’s enforcement proceedings at law.’ *Minn. Auto Dealers Ass’n v. Minn. ex rel. Minn. Pollution Control Agency*, 520 F. Supp. 3d 1126, 1134 (D.

Minn. 2021) (citation omitted) (emphasis added),” and that Plaintiff cannot show that anything on the AGO website demonstrates “an enforcement action of a civil or criminal nature is ‘imminent’ against him.” (ECF 27 at 7.) Because either basis would be sufficient to find *Ex parte Young* inapplicable, Plaintiff cannot show the “wholesale disregard, misapplication, or failure to recognize controlling precedent.” *Undlin*, 2009 WL 3754208, at *3. And even if this Court considered Plaintiff’s argument that this Court erred by concluding the injury complete at the time the letter was sent, Plaintiff’s argument would still fail because Plaintiff has only alleged injury from the letter’s disposal of his petition and never alleged injury from the statements on the website, which were not specifically directed at Plaintiff. (ECF 1 ¶¶ 67-79; ECF 15 at 15-17; ECF 30 at 6, 8.) (*see also* ECF 11 at 11-14 (explaining why Plaintiff failed to adequately plead any constitutional violation).)

III. PLAINTIFF CITES NO AUTHORITY REQUIRING THE COURT TO STATE DISMISSAL IS WITHOUT PREJUDICE.

Plaintiff argues this Court must alter the judgment to state the dismissal of his complaint is without prejudice because the Court dismissed his complaint on jurisdictional grounds. (ECF 30 at 11-12.) But the cases Plaintiff cites only stand for the proposition that jurisdictional dismissals should be without prejudice. *Hart v. United States*, 630 F.3d 1085, 1091 (8th Cir. 2011) (modifying the district court’s with-prejudice dismissal for lack of subject matter jurisdiction to be without prejudice); *Cnty. of Mille Lacs v. Benjamin*, 361 F.3d 460, 465 (8th Cir. 2004) (“A district court is generally barred from dismissing a case with prejudice if it concludes subject matter jurisdiction is absent.”). Neither case,

however, states that a court must make clear that jurisdictional dismissals are without prejudice. And here, nothing in the Court’s order specifies that the dismissal for lack of standing and Eleventh Amendment immunity is with prejudice. As such, there is no manifest error of law and Plaintiff’s argument fails.

IV. PLAINTIFF’S REQUEST TO AMEND HIS COMPLAINT IS PROCEDURALLY IMPROPER AND FUTILE.

Last, Plaintiff argues that he should be granted leave to amend his complaint. (ECF 30 at 12.) Although leave to amend is granted liberally under Rule 15 prior to dismissal, “a motion for leave to amend after dismissal is subject to different considerations.” *In re SuperValu, Inc.* 925 F.3d 955, 961 (8th Cir. 2019) (quotation omitted). Post-judgment leave to amend will be granted only “if it is consistent with the stringent standards governing the grant of Rule 59(e) and Rule 60(b) relief.” *Id.* (quotation omitted). “[T]he original judgment must be set aside under Rule 59 . . . before an amendment can be permitted under Rule 15(a)(2).” *Id.* at 962. For the reasons stated above, Plaintiff’s Rule 59 motion cannot prevail and Plaintiff’s request to amend his complaint should therefore be denied.

Plaintiff’s request to amend his complaint should also be denied as procedurally improper. *Bhatia v. 3M Co.*, 323 F. Supp. 3d 1082, 1096 (D. Minn. 2018) (denying informal request to amend complaint because Court lacked benefit of seeing how proposed amended complaint would satisfy pleading burdens); L.R. 15.1 (requiring a motion to amend pleadings accompanied by a copy of the proposed amended pleading). Moreover, Plaintiff’s proposed amendments would be futile because, as explained above, the alleged

“website disclaimer” is not an ongoing violation of federal law to which *Ex parte Young* applies and an alleged “false statement of the office’s legislated authority” does not confer an injury upon Plaintiff sufficient to establish standing. *A.H. v. St. Louis Cty, Missouri*, 891 F.3d 721, 730 (8th Cir. 2018) (“Futility is always a basis to deny leave to file an amended complaint.”); *In re Senior Cottages of Am., LLC*, 482 F.3d 997, 1001 (8th Cir. 2007) (“[W]hen a court denies leave to amend on the ground of futility, it means that the court reached a legal conclusion that the amended complaint could not withstand a Rule 12 motion.”). Indeed, as this Court has previously explained in denying Plaintiff leave to amend his complaint, Plaintiff cannot show “how the complaint could be amended to save [a] meritless claim” and Plaintiff already had a chance to press his claims in *Kirchner I.* (ECF 27 at 8 (quoting *Mell v. Minn. State Agric. Soc’y*, 557 F. Supp. 3d 902, 924 (D. Minn. 2021) (quotation omitted)).) This Court should therefore deny Plaintiff’s request to amend his complaint.

CONCLUSION

Defendant respectfully requests that the Court deny Plaintiff Joseph Kirchner’s Motion to Alter or Amend Judgment.

Dated: October 7, 2026

KEITH ELLISON
Attorney General
State of Minnesota

s/ Jamal Zayed
JAMAL ZAYED
Assistant Attorney General

Atty. Reg. No. 0401139

445 Minnesota Street, Suite 600
St. Paul, Minnesota 55101-2125
(651) 583-7074 (Voice)
(651) 282-5832 (Fax)
jamal.zayed@ag.state.mn.us

ATTORNEY FOR DEFENDANT

|#6459530-v1